

26CMCV00410 26CMCV00410

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-26

Motion: PLAINTIFFS INDRA SARATH'S AND ZARA SARATH'S MOTION TO SET PREFERENTIAL TRIAL DATE DATE:
August 26, 2026 TIME: 8:30 A.M.

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Case Number: 26CMCV00410 Hearing Date: August 26, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

INDRA SARATH, a minor, by and through her Guardian Ad Litem, ANJALI SARATH; ZARA SARATH, a minor, by and through her Guardian Ad Litem, ANJALI SARATH; and ANJALI SARATH, individually,

Plaintiffs,

vs.

COUNTY OF LOS ANGELES, d.b.a., HARBOR-UCLA MEDICAL CENTER; and DOES 1 through 250, inclusive,

Defendant(s).

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CASE NO: 26CMCV00410

[TENTATIVE] ORDER RE: PLAINTIFFS INDRA SARATH'S AND ZARA SARATH'S MOTION TO SET PREFERENTIAL TRIAL DATE

DATE: August 26, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiffs Indra Sarath and Zara Sarath

Responding Party: Defendant County of Los Angeles

Notice: Ok

Tentative Ruling: Defendant's Motion for Protective Order is GRANTED.

I. BACKGROUND

This is a wrongful death action. Plaintiffs Indra Sarath ("Indra")^[1], Zara Sarath ("Zara") and Anjali Sarath ("Anjali") allege that Decedent Sarath Sankaran Kutty ("Decedent") was involved in an accident which resulted in him being transferred to the hospital operated by Defendant County of Los Angeles dba Harbor UCLA Medical Center (the "County") where he underwent surgery. While in his initial surgery, Plaintiffs allege that Decedent suffered complications resulting in a Code Blue. Later, after having been cleared for a second surgery, Plaintiffs allege that Decedent suffered complications due to the negligence of the County leading to his death.

On March 2, 2026, Plaintiffs filed the instant action against the County for: (1) Wrongful Death; and (2) Loss of Consortium.

On July 23, 2026, Plaintiffs filed the instant Motion to Set Preferential Trial Date.

On August 13, 2026, Defendant County of Los Angeles filed a Response to Plaintiffs' Motion.

As of August 21, 2026, Plaintiffs have not filed a Reply. Pursuant to Code Civ. Proc. § 1005(b), all reply papers must be filed and served at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II. ANALYSIS

A. Legal Standard

"A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole." (Code Civ. Proc. § 36(b).) If a motion for preference is granted premised upon Code of Civil Procedure § 36(b) (party under 14 years of age), the matter must be set for trial 'not sooner than six months and not later than nine months from the date that the motion is granted.' (Code Civ. Proc. § 36(g).)

Code Civ. Proc. § 36(c)(1) requires that all essential parties be served with process or have appeared in the action in order to grant a motion for preference.

B. Discussion

Indra and Zara move the Court for an order setting a preferential trial date within six months, arguing that they both are under the age of 14 and are accordingly entitled to preference in setting the trial date pursuant to Code of Civil Procedure § 36(b). Via the declaration of Plaintiffs' counsel, Bruce G. Fagel ("Fagel"), Indra and Zara present evidence that each is under the age of 14; Indra was born in June 2018 and Zara was born in August 2020. (See Fagel Decl., ¶ 4, Exh. A (Application and Orders for Appointment of Guardians Ad Litem for Indra and Zara.) Fagel further attests that: (1) all parties in this action have been served and appeared; and (2) that Indra and Zara each have substantial interest in the case because each alleges to have suffered direct and substantial losses as a result of Decedent's death. (Id., ¶¶ 3, 6.)

In response, the County does not dispute that the minor Plaintiffs are entitled to statutory preferential trial-setting under Code of Civil Procedure § 36(b), but instead notes that the varying time period for trial setting pursuant to Code of Civil procedure § 36(g) and requests the Court set trial on or about May 26, 2027, nine months from the hearing date of this motion.

The Court finds that Plaintiffs are entitled to trial setting preference as they have demonstrated that each is under the age of 14 and each has a substantial interest in the case as a whole. Indra and Zara have not replied in support of their motion and the Court accordingly determines that a 9-month date is acceptable.

III. CONCLUSION

Indra and Zara's Motion to Set Preferential Trial Date is GRANTED.

The current Trial, Final Status Conference and Post-Mediation Status Conference dates are VACATED.

Trial is set for May 24, 2027 at 9:30 a.m. in Department E.

A Final Status Conference is set for May 14, 2027 at 9:00 a.m. in Department E.

A Post-Mediation Status Conference is set for April 8, 2027 at 8:30 a.m. in Department E.

[1] Because they all share the same surname, the Court refers to Plaintiffs by their respective first names. No disrespect is intended. Indra, Zara and Anjali are collectively referred to herein as the "Plaintiffs."